

Mohd. Tahir v. State of U.P.

Allahabad High Court · Division Bench · 24 July 2014 · Writ-C No. 37957 of 2014 · **Writ dismissed; petitioner relegated to clause 6.5.**

HEADNOTE

A challenge to the validity of an electricity bill is to be raised under clause 6.5 of the Electricity Supply Code, 2005, which is a self-contained code; the writ petition is dismissed so that the petitioner may avail that mechanism.

FACTUAL SUMMARY

Mohd. Tahir invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and two others. In pith and substance the petition questioned the validity of an electricity bill that had been raised against him. No concluded determination under the Electricity Supply Code, 2005 was placed before the Court. The Division Bench of V.K. Shukla and Shashi Kant, JJ. heard the petition on 24 July 2014 and disposed of it the same day.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-dispute-alternate-remedy

HOLDING

The Electricity Supply Code, 2005 is a self-contained code. A dispute as to the validity of an electricity bill is to be raised under clause 6.5; once that mechanism is provided, the consumer is to avail it and the writ petition will not be entertained. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A challenge to the validity of an electricity bill is to be raised under clause 6.5 of the Electricity Supply Code, 2005, which is a self-contained code; the writ petition is dismissed so that the petitioner may avail that mechanism. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ELECTRICITY BILL

The Court did not examine the bill on merits; the petitioner was relegated to clause 6.5. ¶ 1